

TE Connectivity Operations Sdn. Bhd.
Plot No. 522 Lorong Perusahaan Baru 3
Prai Industrial Estate 13600 Prai, Penang
Tel (+60) -4-3989298
Fax (+60) -4-3989198
Registration No. 200601016112 (735864-D)



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{{REQ_ID}}

Private & Confidential

Date: {{Initiate_Date}}

{{Employee_Full_Name}}

IC: {{Identification_Card_Number}}

{{Employee_Home_Address}}

Dear {{Employee_Full_Name}},

EMPLOYMENT AGREEMENT

We are pleased to confirm our offer of employment as below, which is subject to you passing the pre-employment medical checkup.

1. **Position:** {{Job_Title}} (TE Global Job Framework/Structure)

Band & Level: {{Band_Level_Role}}

Job Description: Your job description will be given upon you joining the Company.

2. **Commencement of Employment:**

{{Effective_Date}}

3. **Location:**

You will initially be based at the Company's premises.

The Company may, at its discretion, alter this location and/or its premises in accordance with the needs of its business.

4. **Remuneration:**

4.1 Basic Salary

Your basic salary will be {{Currency}} {{Monthly_Basic_Salary}} per month. This will be payable to you at the end of every month.

4.2 Bonus

In addition to the above, you will be eligible to receive a 13th Month salary equivalent to 1 (one) month's salary. The 13th month salary is calculated based on the Company's Financial Year calendar.

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The above entitlement will be pro-rated accordingly during the first year of employment. Pro-rata basis is applied to employees who serve less than a year in the Company's Financial Year. No fraction will be taken for the calculation of 13th month salary.

Any employee who resigns before the payable date shall not be granted any portion of the 13th month salary.

The decision to make such payment is solely based on management's discretion.

4.3 Global Incentive Plan (GIP)

You will be eligible to participate in the Company's variable bonus program called the Global Incentive Plan. Your target GIP is equivalent **{{Incentive_Rate}}** to of your annual base salary.

Award of GIP is subject to Company's overall performance, Business Unit, and your individual performance. Your incentive payment can range from 0% - 200% of target. Details terms and conditions of the GIP will be shared with you separately and they may vary from one year to the other.

In Process

5. Working Hours:

You are required to work as per Company's observed working hours. The Company reserves all the right to alter its working hours as it deems necessary.

6. Probationary Period:

Your probationary period is **{{Probation_Period}}** months from the date you commence employment with the Company. On satisfactory completion of service on probation, your appointment will be confirmed in writing. In addition to this, your compliance with and adherence to the Company's values, policies and procedures, in particular, the TE Connectivity Guide to Ethical Conduct, will also be considered in the Company's overall assessment of your service during probation. If the Company deems necessary, the Company reserves the right to extend the period of probation, or terminate your employment without citing any reason, as appropriate.

7. Termination:

During probation, your service with the Company may be terminated by either party with **{{Month_s_Notice_Confirmed}}** months' notice in writing or pay in lieu of such notice.

After confirmation, the period of notice shall be the provision of **{{Month_s_Written_Notice}}** month's written notice by either party or pay in lieu of such notice. You are not allowed to off-set the notice period with your annual leave.

8. Transfer:

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The Company reserves the right to transfer you to work in any section / department/ division or any other job at any location within the TE Connectivity group of companies worldwide (inclusive of any location in Malaysia) at the sole discretion of Management.

9. Business Travel:

You may be required to travel to other locations within the jurisdiction and overseas as part of your duties.

The company shall reimburse you for reasonable and properly documented out-of-pocket expenses incurred in connection with the Company's business and the performance of your duties subject to such policies as the Company may from time to time establish and communicate to you.

10. Retirement Age:

The retirement age is upon your attaining 60 years of age.

11. Company Information and Electronics Communication:

By signing this Agreement, the Employee agrees to the Confidentiality provisions set out in Schedule 1 and the terms of the Electronic Communications Protocol set out in Schedule 2 to this Agreement.

12. Company Policies:

You are required to follow all company policies and procedures including but not limited to those set out in The TE Connectivity Guide to Ethical Conduct (the "Guide") and the Company's Employee Handbook that is advised to the Employee from time to time which is published in the Company's share point.

The Company may, in its discretion, change, vary, amend or replace any of its Company policies and procedures during the term of this Agreement with or without notice.

Any non-compliance by the Employee with any of the Company policies and procedures (including but not limited to the Guide) will be treated as misconduct and may result in termination of the Employee's employment without notice. The Employee must co-operate fully with the Company if the Company (or anyone on its behalf) investigates on whether the Employee has contravened, or whether the Employee has knowledge of possible contravention of, any company policy or procedure.

A copy of the Guide is attached to this Agreement. You are required to read the Guide and comply with its requirements as a part of the Employee's employment conditions. The Employee's execution of this Agreement.

13. Amendment:

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Except as otherwise provided herein, this Agreement may be amended only by a further written agreement executed by both Parties.

If you accept the above conditions of employment, please append your signature at the space provided on the duplicate of this letter. This offer letter will be considered null and void if not signed or returned to the Company within **one week** from the date of this letter.

We cordially welcome you into our world-wide organization and sincerely hope that you will find your work interesting and rewarding.

Yours Sincerely,

TE Connectivity Operations Sdn. Bhd.

In Process

.....
Chuah Shai Im
HR Solutions Partner Manager

I, Test Employee Laird holder of NRIC No. _____ hereby
agrees to these terms and conditions of employment and will abide by the Guide and the Company's
policies and procedures.

.....
Signature

.....
Date

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SCHEDULE 1

EMPLOYEE CONFIDENTIALITY AGREEMENT

This is a legally binding agreement between the Company and the Employee.

1. In the course of Employee's employment with the Company, the Company may elect to disclose information of the following types to the Employee:
 - Financial, technological, strategic or business information.
 - Research, development, operational, legal, marketing or accounting information.
 - Technology and intellectual property rights.
 - Customer and supplier information.
 - Other information specifically marked as being confidential.
 - Information not generally known that would provide an advantage to a competitor were the competitor to have this information.
2. All such information (whether or not about the Company or its related corporations, its customers and business associates) will be "Confidential Information" for the purposes of this agreement unless it:
 - Is trivial in nature;
 - Is already public knowledge when it is disclosed to the Employee.
 - Becomes public knowledge after it is disclosed to the Employee other than because of a breach of confidentiality by the Employee or a person to whom the Employee discloses it; or
 - Is in, or comes lawfully into, the possession of the Employee other than because of a breach of confidentiality by some other person.
3. In return for the Company disclosing any Confidential Information to the Employee, the Employee agrees that:

The Employee Must Always Keep Information Confidential

The Employee must hold the Confidential Information in strict confidence and must take all steps necessary to preserve its confidentiality. The Employee may only disclose Confidential Information to another person if the Employee obtains written permission from a Director of the Company and the other person signs a similar undertaking to this agreement. The Employee must not use or copy any Confidential Information in any way except as is legitimately required as part of the Employee's employment. All of these restrictions will continue even after the Employee's employment ends or this agreement is terminated for any reason.

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Return of Confidential Information

If the Employee's employment ends, or if requested earlier by the Company, the Employee must immediately deliver to the Company all forms of any Confidential Information under the possession, power or control of the Employee. The Employee must confirm in writing promptly when it has done so.

Ownership of Results

Any information or intellectual property developed or created by the Employee using the Confidential Information will itself be Confidential Information and will be the property of the Company. The Employee will take any steps necessary to assign to the Company all the Employee's interest in this intellectual property.

Responsibility for Improper Disclosure

Without limiting any other rights of the Company, the Employee agrees to indemnify the Company in respect of all claims, losses costs or expenses of any kind incurred directly or indirectly as a result of a breach by the Employee of any of its obligations under this agreement.

Employee Signature: _____

Employee's Name: Test Employee Laird

Signed for the Company: TE Connectivity Operations Sdn. Bhd.

Dated: _____

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SCHEDULE 2

ELECTRONIC COMMUNICATIONS PROTOCOL

This document summarizes key information systems policies and mandatory requirements for all persons who use the Company's computer and communication systems. Completing this agreement with the Company by signing it is a prerequisite requirement for access to the Company's systems. This document forms part of the Company's information systems policies which include the provisions on communication equipment in the TE Connectivity Guide to Ethical Conduct.

The Company provides access to a variety of methods for electronic communication both internally and externally including Electronic Mail, Voice Mail, FAX, the Internet and On-Line services. It is the responsibility of each employee to use it responsibly, respectfully and lawfully.

These protocols and conditions of use have been established in order to protect both users and the Company.

1. General Principles

- (a) Electronic communication facilities are provided for the purpose of conducting business on behalf of the Company and should be used accordingly.
- (b) Electronic communication from the Company represents the Company as a whole, and as such, should be appropriate and professional, whether it is e-mail, participation in Internet chat groups or any other form of communication.
- (c) As any form of electronic communication transmitted over a network is inherently insecure and may be accessed by unauthorized parties, special care must be taken when sending or communicating any confidential or highly sensitive information.
- (d) The distribution of any information through the internet, computer-based services, e-mail, and messaging systems is subject to the scrutiny of the Company. The Company reserves the right to determine the suitability of this information.
- (e) Use of Internet, Intranet and e-mail may be subject to monitoring for security and/or network management reasons. Users may also be subject to limitations on their use of such resources.
- (f) The Company does monitor the use of electronic communication systems for unusual activities. The Company reserves the right to have access to and search electronic communications in situations in which the Company determines such searches to be necessary and in accordance with applicable law. Thus, the Employee should not have an expectation of privacy, even if access is restricted through passwords, etc. Similarly, the Company may block or delete certain information contained or transmitted on its computer resources.
- (g) Care must be used in addressing messages to ensure that messages meant for specific individuals are not inadvertently sent to others either internally or externally.

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- (h) Messages inadvertently sent to the wrong individual should be forwarded to the intended recipient. Privacy of such messages should be observed by the unintended recipient and not read, printed, copied, disclosed, or listened to.
- (i) Formal approval from the Company's IT Department is required before downloading and installing any software from the Internet or other sources.
- (j) It is recognized that from time to time, employees will need to communicate on personal issues, for example make and confirm a dentist appointment. Therefore, a small number of personal emails are permitted. This personal use of email must be short in length and should not exceed one or two per day.
- (k) Should an individual receive jokes or any form of offensive or pornographic communication, which may be individually sent, to be 'bulk distribution lists' the Employee should advise the sender to desist sending them to the Employee, irrespective of the content. They should be advised that it is against the Company's policy. If the sender does not desist, the Employee should inform the Manager of the Company's IT Department.

Conditions of Use

In Process

When the Employee uses the Company's electronic communications systems, the Employee must not:

1. Visit internet sites that contain obscene, hateful, objectionable materials or other materials that violate the TE Connectivity Guide to Ethical Conduct or any other applicable company policies and procedures.
2. Transmit electronic documents or files that contain false, inaccurate, or potentially offensive content or carry a virus.
3. Display, download or distribute any sexually explicit image or file.
4. Send or receive any material that is obscene or defamatory or which is intended to annoy, harass or intimidate another person.
5. Make or post indecent remarks, proposals, or materials.
6. Use the Company's computer systems for personal gain or profit.
7. Use the Internet or e-mail for any illegal purpose.
8. Solicit e-mails that are unrelated to business activities.
9. Represent personal opinions as those of the Company.
10. Reveal or publicize confidential or proprietary information which includes, but is not limited to, financial information, new business and product ideas, marketing strategies and plans, databases and the information contained therein, customer lists, technical product information, computer software source codes, computer or network access codes, and business relationships.
11. Upload, download, or otherwise transmit commercial software or any copyrighted materials belonging to parties outside of the Company, or the Company itself.

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12. Install software or hardware in or on any Company computer without the permission or consent of the Company's IT Department.
13. Examine, change, or use another person's files, output, or username for which they do not have explicit authorization.
14. Intentionally interfere with the normal operation of the network, including the propagation of computer viruses and sustained high volume network traffic that substantially hinders others in their use of the network.
15. Unless with the prior consent of the Company, reveal the Employee's password for system access to any person other than a system administrator who can positively identify as being such.
16. Share the Employee's personal system account with any other computer user.
17. Perform any inappropriate uses.

Users who breach any of the guidelines set in the policy will be subject to disciplinary action including written warnings, revocation of access privileges, and dismissal from their employment with the Company. The Company also retains the right to report any illegal violations of its electronic communications system to the appropriate authorities.

If the Employee becomes aware of any breaches of security or violations of data, the Employee must bring this to the attention of the Manager of the Company's IT Department or the most senior manager available. This includes any inside or outside party gaining access to information they should not have, or any virus being on the Employee's computer or on the Company's system. The Employee may also advise either the Group Manager Human Resources or Divisional Human Resources Manager if the matter is sensitive in relation to anti-discrimination and/or harassment.

The Employee acknowledges that the Employee has read and understood the above Electronic Communications Protocol and agrees to comply with it and the Company's information systems policies as may be amended from time to time. The Employee understands that the Employee may be required to renew this agreement with the Company from time to time as protocols and policies change.

Employee's Signature: _____

Name : _____ Test Employee Laird

Date : _____